

Court No. - 40

Case :- WRIT - C No. - 35928 of 2022

Petitioner :- Smt. Sushila Giri

Respondent :- Uttar Pradesh Power Corporation And 2 Others

Counsel for Petitioner :- Ranjan Krishna Pandey, Ramendra Giri

Counsel for Respondent :- Narendra Kumar Tiwari

Hon'ble Siddhartha Varma, J.

Hon'ble Ajit Singh, J.

Put up this case on 14.12.2022 as fresh in the top ten cases.

Order Date :- 2.12.2022

vkj

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Respondent :- Uttar Pradesh Power Corporation And 2 Others

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Counsel for Respondent :- Narendra Kumar Tiwari

Hon'ble Siddhartha Varma, J.

Hon'ble Ajit Singh, J.

Learned counsel for the petitioner states that the electricity connection to the petitioner is not being granted as she is a tenant and the landlord was in arrears of electricity bills.

He further states that if that is the case then the Electricity Department can always give a prepaid meter connection to the petitioner.

Learned counsel appearing for Electricity Department, Sri Narendra Kumar Tiwari may take instructions in this matter.

Put up this case as a fresh case on 21.12.2022 in top ten cases.

Order Date :- 14.12.2022

AU

Court No. - 40

Case :- WRIT - C No. - 35928 of 2022

Petitioner :- Smt. Sushila Giri

Respondent :- Uttar Pradesh Power Corporation And 2 Others

Counsel for Petitioner :- Ranjan Krishna Pandey, Ramendra
Giri

Counsel for Respondent :- Narendra Kumar Tiwari

Hon'ble Siddhartha Varma, J.

Hon'ble Vikram D. Chauhan, J.

Learned counsel for the respondent-Electricity Department has filed certain instructions which are taken on record in which he shows that the house in which the petitioner was seeking connection already had arrears of electricity bill to the tune of Rs. 94431.00 and therefore, the connection could not be granted.

The petitioner to show her bona fide may file such documents which would prove that the petitioner is a tenant in the property.

Place this case as a fresh case on 10.1.2023.

Order Date :- 21.12.2022

VMA

(Vikram D. Chauhan, J.)

(Siddhartha Varma, J.)

Court No. - 42

Case :- WRIT - C No. - 35928 of 2022

Petitioner :- Smt. Sushila Giri

Respondent :- Uttar Pradesh Power Corporation
And 2 Others

Counsel for Petitioner :- Ranjan Krishna
Pandey, Ramendra Giri

Counsel for Respondent :- Narendra Kumar Tiwari

Hon'ble Suneet Kumar,J.

Hon'ble Rajendra Kumar-IV,J.

Heard learned counsel for the parties.

The petitioner, by means of the instant writ petition, seeks a direction to provide electricity connection at 197, Nai Basti, Kydganj, District Prayagraj. The premises on which the petitioner is a tenant.

Learned counsel for the respondent, on instruction, submits that Rs.94431/- is due from the landlord of the said premises. Consequently, in view of paragraph 4.3(f)(iii) of The Electricity Supply Code, 2005, the electricity connection cannot be granted to the premises under the occupation of the petitioner.

Learned counsel for the petitioner submits that the respondent corporation, instead of recovering the electricity dues from the landlord, is denying petitioner electricity connection, whereas, the other residents of the premises are receiving electricity supply fraudulently or by way of theft.

Learned counsel for the petitioner submits that the department would not suffer, as the petitioner is prepared to consume electricity through prepaid meter.

Learned counsel appearing for the corporation submits that the respondent corporation would not have any difficulty for providing electricity, through prepaid meter to the premises in occupation of the petitioner.

In view thereof, on consent of the parties, the writ petition is **disposed of**, directing the second respondent to process the form of the petitioner for electricity connection. The petitioner undertakes to complete the formalities, expeditiously. In the event, the formalities for electricity connection is duly completed to the satisfaction of the second respondent, the electricity supply shall be granted to the petitioner within **ten days** thereafter.

Order Date :- 13.2.2023

Manoj